

To

The Estate Officer
The Executive Officer
Cantonment Board Office
Nasirabad (Rajasthan)

REMINDER

Dated

Subj: - Notice under section 5A (2) PP Act 1971
Ref: - Your No.87 dated 3.12.1999.

Sir,

The above notice addressed to undersigned refers to an open land measuring 701sft which is a bona fide and integral part of my two houses Nos. 533 and 532 for over 80 years in Ramdayal mohalla Nasirabad.

It has been alleged encroachment under PP act being B (4) govt. land/survey number 280/4485 vide above notice. The charge framed under reference is wrong because referred survey number as well as type of land both is erroneous and to prove the mistake the following facts are furnished below for examination and rectification.

Survey numbers, land areas, classification of land and house tax payment etc. are given below.

House No.	Survey No.	Legal land Area	Classification of land	House Tax
533	280/752	1120 sft	B (3) Old Grant	Paid Up To March2006
532	280/751	405 sft	B (3) Old Grant	Paid Up To March2006
Total land of both houses		= 1525 sft		

HN.533 & 532 located on old grant B (3) land in Ramdayal Mohalla Nasirabad and bound at site as per cantonment survey plan civil area as under.

On the North by: --Gully
On the South by: --Road
On the East by: --H.N. 534
On the West by: --Rasta

1120sft is total legal land area of HN.533. And 405sft is total legal land area of kutchra HN.532, which deteriorated several decades ago leaving building site now. 701sft alleged land area is an integral part of both the houses evidentially by examining & clubbing areas vide item (i) & (i a) and (ii) below.

- (i) 824sft is built up portion of HN.533 part of legal area 1120sft.
- (i a) 296sft is open chabutra of HN. 533 next to built portion part of legal area 1120sft.
- (ii) 405sft is building site area next to chabutra, legal land of deteriorated kutchra HN.532.

The cantonment survey plan is evidential enough to verify correct survey numbers 752 & 751 and B (3) land category of HN.533 & 532. The executive officer is charging assessed house tax on both houses ever since origin by demand notices that proves & verifies HN.532 & 533 on B (3) land are free from encumbrances by title, possession and tax payment etc. on joint area 1525sft of both houses over 80 years.

My late father Sh. Narain s/o Gordhan submitted all relevant documents to your office in his life time and the same have been seen intact by the undersigned while going through the office file entitled HN.532/533 "Narain s/o Gordhan"

The overseer verified and examined himself land category of both houses on cantonment survey plan and admitted on verification that HN. 533 & 532 land is B (3) and not B (4), and as such assured **needful acquittal of the said action at the earliest.**

I request your honour to grant acquittal of this petty case of year 1999 pending over 8 years under PP act. Sir I'm senior citizen humbly pray that enough delay already passed mostly due to abortive dates successively. An early decision is therefore requested in view of my old age and health conditions at 75 kindly to relieve me from mental tortures and tensions as such.

Thanking you highly,

Yours sincerely,

(R.C. Sharma)
S/o Late Narain Gordhan
1093 A, Balupura Road, Adarsh Nagar,
Ajmer (Rajasthan) Pin 305001

Encls. Site Plan